

		court) is payable to Plaintiff jointly and severally by Defendant and its counsel. Plaintiff is ordered to give notice of this ruling to Defendants.
7	30-2022-01268543 Garcia vs. Medina Lopez	Defendant Wilo's Express Inc. ("Wilo's") and Hugo Alexandro Median Lopez ("Lopez") (collectively, "Defendants") Motion to Dismiss the Action for Failure to Prosecute is GRANTED. This action is DISMISSED WITHOUT PREJUDICE. This action was filed on July 6, 2022. (ROA 2.) On September 5, 2024 (ROA 76), Plaintiffs filed a Notice of Settlement stating that the settlement was "Unconditional," not "Conditional." "Except as provided in (c) [conditional settlements] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case." (Cal. R. Ct., R. 3.1385(b).) "If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. (Id.) "If the settlement of the case involves the compromise of the claim of a minor or person with a disability, the court must not hold an order to show cause hearing under (b) before the court has held a hearing to approve the settlement, provided the parties have filed appropriate papers to seek court approval of the settlement." (Cal. R. Ct., R. 3.1385(d).) Plaintiffs never filed a request for dismissal of the entire case and never filed any motion for approval of the settlement of the minors' claims. On September 13, 2024, the court issued an Order to Show Cause re: Dismissal on Settled Case scheduled for 10/16/2024 at 09:00 AM in Department C16. (ROA 80.) On October 16, 2024, the Order to Show Cause re: Dismissal on Settled Case was continued to 01/14/2025 at 09:00 AM in Department C16 pursuant to party's motion. (ROA 83.) On January 14, 2025, there were no appearances by any party so the court dismissed the case in its entirety for Failure to Appear. (ROA 86.) The court ordered the entire action dismissed without prejudice. (Id.) On September 8, 2025, the court granted Plaintiffs' Motion to Set Aside Order Dismissing this Matter for Failure to Appear At

		Hearing Pursuant to CCP § 473(b) and Reinstate OSC re: Dismissal on Settled Case. (ROA 98.) The court vacated the dismissal and reinstated the OSC re: Dismissal on Settled Case. (Id.) Defendants now ask that the court dismiss the action again based on Plaintiffs' failure to prosecute the case pursuant to CCP § 583.410 and failure to settle the claims in this action aside from a settlement with plaintiff Osmani Fernando Garcia. "The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (CCP § 583.410.) "The court on its own motion or on motion of the defendant may dismiss an action under Code of Civil Procedure sections 583.410-583.430 for delay in prosecution if the action has not been brought to trial or conditionally settled within two years after the action was commenced against the defendant." (Cal. R. Ct., R. 3.1340(a).) "The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits." (Cal. R. Ct., R. 3.1342(b).) "Conditionally settled" means: (1) A settlement agreement conditions dismissal on the satisfactory completion of specified terms that are not to be fully performed within two years after the filing of the case; and (2) Notice of the settlement is filed with the court as provided in rule 3.1385. (Cal. R. Ct., R. 3.1340(c).) In this action, Plaintiffs have not propounded any written discovery, have not taken any depositions, have not designated any experts, and have not appeared to have investigated their claims. Now it appears Plaintiffs have also not acted diligently in settling their claims with Defendant. Plaintiffs have also failed to oppose this Motion. Under these circumstances, the court finds that Plaintiffs have unreasonably delayed in prosecuting their claims. As Plaintiffs have not brought this action to trial nor conditionally settled the action within two years after the action was commenced, and as Plaintiffs did not oppose this Motion, the
--	--	--

		court grants Defendants’ Motion to Dismiss, and hereby dismisses this action without prejudice. The court DENIES AS MOOT Defendants’ alternative Motion to Enforce Settlement Agreement. The court also VACATES the OSC re: Dismissal on Settled Case. Defendants are ordered to give notice of this ruling to Plaintiffs.
8	30-2023-01345433 Dance Fitness Michigan, LLC vs. AKT Franchise, LLC	Defendants Anthony Geisler (“Geisler”) and LAG Fit, Inc.’s (“LAG Fit”) (collectively, “Geisler Defendants”) Demurrer to Plaintiffs’ Fourth Amended Complaint (“4AC”) is SUSTAINED WITHOUT LEAVE TO AMEND as to the First Cause of Action, but OVERRULED as to the California Franchise Investment Law (“CFIL”) claims (Second, Third, Fifth, Sixth, Seventh, Eighth, Tenth, Thirteenth, Fourteenth and Fifteenth Causes of Action). IT IS ORDERED THAT within twenty (20) days of this ruling, Geisler Defendants must file and serve an answer to Plaintiffs’ 4AC. In the court’s March 9, 2026 Minute Order, the court held that “Defendants Anthony Geisler and LAG Fit, Inc.’s (collectively, ‘Geisler Defendants’) Demurrer to Plaintiffs’ [Third Amended Complaint] is SUSTAINED WITHOUT LEAVE TO AMEND as to the First Cause of Action for declaratory judgment[.]” (ROA 422 at p. 6.) Yet, in Plaintiffs’ 4AC, Plaintiffs pled the cause of action again against Defendants (4AC ¶¶ 187-204). Plaintiffs do not contest the court’s dismissal of that claim as to the Geisler Defendants. Accordingly, the court once again SUSTAINS WITHOUT LEAVE TO AMEND Geisler Defendants’ demurrer to the First Cause of Action. On March 9, 2026, the court also “SUSTAINED WITH LEAVE TO AMEND as to all CFIL causes of action against LAG Fit, Inc.” (<i>Id.</i>) The court stated: Geisler Defendants demur to the TAC on the grounds that Plaintiffs fail to state a claim against Defendant LAG Fit, Inc. because they fail to allege that it “controls,” or is otherwise derivatively liable for the actions and liabilities of AKT Franchise, LLC to be liable under Corporations Code section 31302 for joint and several liability. The only allegation as to LAG Fit, Inc. is: “Geisler and Grabowski indirectly control AKT Franchisor through their ownership interests and/or rights guaranteed in